

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA**

**In the matter of an Appeal in terms of
Section 320 of the Code of Criminal
Procedure Act No. 16 of 1979.**

Court of Appeal
Case No. CA HCC 336/2025

The Hon. Attorney General,
Attorney General's Department,
Colombo 12.

Complainant

Vs.

High Court of Tangalle
Case No. THC/43/2006

Rathnapure Chandana himi *alias*
Dhammasiri

Accused

AND NOW BETWEEN

Rathnapure Chandana himi *alias*
Dhammasiri

Accused-Appellant

Vs.

The Hon. Attorney General,
Attorney General's Department,
Colombo 12.

Complainant-Respondent

Before: **Amal Ranaraja, J.**
 Dr. Sumudu Premachandra, J.

Counsel: Darshana Kuruppu with Rajitha Kulathunga for the Accused-Appellant.

Dileepa Pieris, A.S.G. for the Respondent.

Decided on: 17.09.2026

ORDER

AMAL RANARAJA, J.

1. The accused appellant (hereinafter referred to as the “appellant”) has been indicted in the *High Court of Tangalle* in case number THC 43/2006.

The charge in the indictment is as follows:

That on or about July 10, 2001, within the jurisdiction of this Court, the appellant did commit murder by causing the death of one *G. Gunadasa*, an offence punishable under section 296 of the Penal Code.

2. At the conclusion of the trial, the learned High Court Judge has convicted the appellant of the charge and sentenced him to death.
3. The appellant, aggrieved by the conviction, disputed judgment together with the sentencing order has preferred the instant appeal to this Court.

4. When the matter was taken up for argument, the learned Counsel for the appellant raised a preliminary objection on the basis that the learned High Court Judge has failed to comply with Section 195(ee) of the Code of Criminal Procedure Act No. 15 of 1979, as the learned High Court Judge has failed to inquire from the appellant, whether he elected to be tried by a jury, depriving his right to a fair trial under Article 13(3) of the Constitution.
5. On November 11, 2011, when the relevant case had been taken up in the *High Court of Tangalle*, the learned High Court Judge has inquired from the appellant whether he elected to be tried by a jury. The appellant has subsequently acknowledged his election to be tried before a jury as follows:

"මෙම නඩුව ජූරි සභාවක් ඉදිරියේ විභාගයට ගත හැකි නඩුවක් බැවින්, ජූරි සභාවක් ඉදිරියේ නඩුව විභාගයට ගැනීමට හෝ මෙම අධිකරණය ඉදිරියේ නඩු විභාගයට ගැනීමට හැකියාව තිබෙන බව දන්වා වූදිනගෙන් ඒ පිළිබඳව විමසමි.

වූදින ජූරි සභාවක් ඉදිරියේ නඩුව විභාගයට ගැනීමේ අවශ්‍යතාවය දන්වයි."

[vide pages 129 and 130 of the Appeal Brief]

6. However, the journal entry dated July 01, 2014, reveals that the Counsel appearing on behalf of the appellant has informed the court that the appellant is amenable to be tried by the learned High Court Judge, notwithstanding the appellant's prior election. Thus, the trial has commenced before the learned High Court Judge on February 21, 2017.
7. The learned Counsel for the appellant contended that the accused's right to elect, to be tried by a jury under Section 195 (ee) of the Code of Criminal Procedure Act No. 15 of 197 is a personal right vested in an

accused and that it may be waived or revoked by an accused himself. He has cited the decisions of the Superior Courts of Sri Lanka to support his contention.

8. In the case of *The Hon. Attorney General v. Segulebbe Latheef and Another* [2008] 1 Sri LR 255, J.A.N. de Silva, J. (as he was then) has stated:

"This amendment necessitated an introduction of a further amendment i.e. section 195 (ee) imposing a duty on the trial judge to inquire from the accused at the time of serving the indictment whether or not the accused elects to be tried by a jury. This is in recognition of the basic right of an accused to be tried by his peers. It is left to the discretion of the accused to decide as to who should try him. As pointed out earlier for nearly two hundred long years the jury system has been in existence in Sri Lanka with whatever the faults it had. I do not make an endeavour to discuss the merits and the demerits of the jury system. As long as it is in the statute book that the accused can elect to be tried by a jury, the trial judge has an obligation not only to inquire from him whether he is to be tried by a jury, judge must also inform that the accused has a legal right to that effect. Non-observance of this procedure is an illegality and not a mere irregularity."

9. In the case of *Hettiarachchige Chandana Hettiarachchi v. The Hon. Attorney General* (CA Application No. 130/2005, decided on 13.03.2012), W.L. Ranjith Silva, J. has stated:

"The judges are required by Section 195(ee) of the Code of Criminal Procedure Act to inquire from the Accused, directly, whether he wishes to be tried by a Judge or a Jury. This is a mandatory duty cast on the trial Judge and cannot be delegated. The law has advisedly cast this duty on

the trial Judge and not on the Counsel. It is one of the few instances provided in the Code of Criminal Procedure Act where the Accused is directly addressed by the Judge over the head of the Counsel.....

It has to be borne in mind that the Counsel may for various reasons, e.g. Convenience or for the convenience of the Judge or for the convenience of a Senior Counsel and/or for various other reasons, not inform the accused of his basic right to a jury trial or pressurize the accused to agree to his preference. Hence it is mandatory requirement for the judges to inform the accused of his right to Jury trial and record that the accused was so informed."

10. A person's right to a fair trial is enshrined in Article 13(3) of the Constitution. Affording an accused the right to elect to be tried by his peers or a judge is a fundamental safeguard of that right. While the Code of Criminal Procedure (Amendment) Act No. 2 of 2022 repealed section 195(ee), it is the very same enactment that has set down an identical requirement under section 195A(3)(d), indicating the legislature's continuous intention to protect the accused's right to be tried by a jury.
11. Accordingly, this Court is of the view that the learned High Court Judge has misdirected himself by proceeding to try the appellant by himself on the basis of an application by the Counsel appearing on behalf of the appellant, when the appellant himself has earlier elected to be tried by a jury.
12. Moreover, the learned Additional Solicitor General, in his written submission, has contended that the appellant has not raised this complaint during the proceedings in the *High Court of Tangalle*. It however, does not negate the procedural error, made by the learned High Court Judge.

13. In addition, the learned Additional Solicitor General has argued that depriving the appellant of an opportunity to elect, to be tried by a jury has not occasioned a miscarriage of justice. This Court, however, cannot agree with that submission.

14. The offence for which the appellant is charged is of a serious nature, carrying the possibility of capital punishment upon conviction. Given these circumstances, acquitting the appellant solely on a procedural defect is not warranted. Hence, the necessity to order a retrial.

15. In such circumstances, I set aside the conviction and the disputed judgment, together with the sentencing order and order for the appellant to be tried de novo.

Retrial ordered.

I make no order regarding costs

16. The Registrar of this Court is directed to send this judgment together with the original case record to the *High Court in Tangalle* for compliance.

Judge of the Court of Appeal

DR. SUMUDU PREMACHANDRA, J.

I agree

Judge of the Court of Appeal